

24VECV05184 24VECV05184

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-10

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Case Number: 24VECV05184 Hearing Date: July 10, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JENNIFER FRENCH,

Plaintiff,

vs.

JOHN MAHONEY and DOES 1-10,

Defendant.

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CASE NO.: 24VECV05184

ORDER DENYING DEFENDANT'S MOTION FOR TERMINATING SANCTIONS

I. BACKGROUND

Plaintiff Jennifer French ("Plaintiff") filed a Complaint against Defendant John Mahoney ("Defendant") alleging Defendant breached his oral contract that all assets the parties obtained during their relationship would be equally owned by the parties. (See Compl., ¶ 18.)

Defendant now moves for terminating sanctions based on Plaintiff's failure to comply with this Court's prior orders compelling discovery responses and imposing discovery sanctions.

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II. PROCEDURAL HISTORY

On October 21, 2024, Plaintiff filed a Complaint alleging: (1) Breach of Oral Contract; (2) Promissory Estoppel; and (3) Quantum Meruit.

On August 12, 2025, the Court granted Defendant's Motion to Compel Responses to his Request for Production of Documents.

On April 7, 2026, the Court granted Defendant's Motions to Compel Plaintiff's Responses to Requests for Production and Special Interrogatories and Motion to Deem Admitted Requests for Admission.

On June 8, 2026, Defendant filed the instant Motion for Terminating Sanctions.

As of July 9, 2026, no opposition has been filed.

III. LEGAL STANDARD

A. Terminating, Issue, Evidentiary, and/or Sanctions

On motion, if a party “fails to obey an order compelling attendance, testimony, and production, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction” as provided in Section 2030.010, et seq. (Code Civ. Proc. § 2025.450(h).)[1] The “court, after notice to any affected party, person, or attorney, and after an opportunity for hearing, may impose” monetary, issue, evidence, or terminating sanctions “against anyone engaging in conduct that is a misuse of the discovery process[.]” (Code Civ. Proc. § 2023.030(a)-(d).) Failing to respond or submit to an authorized method of discovery and disobeying a court order to provide discovery are misuses of the discovery process. (See Code Civ. Proc. § 2023.010(d), (g).)

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IV. ANALYSIS

Defendant requests the Court dismiss Plaintiffs' action with prejudice based on Plaintiffs' failure to comply with the Court's April 7, 2026, Order. (See Motion For Terminating Sanctions, pp. 2-3.) Defendant contends Plaintiff has failed to respond at all to Defendant's Special Interrogatories (set two), Request for Production of Documents (set two), and Requests for Admission (set two). All three of which were served on Plaintiff's counsel on November 13, 2025. When no responses were received to the three discovery requests, Defendant's counsel, on January 5, 2026, sent a meet and confer letter to Plaintiff's counsel and suggested that Plaintiff's counsel contact him on or before January 15, 2026. Neither Plaintiff nor her counsel made any contact of any kind. Defendant John Mahoney then filed a motion to compel and to deem requests for admissions admitted, which came on for hearing on April 7, 2026. The court granted the Defendant's motion to compel Plaintiff to respond to the Request for Production of Documents and Special Interrogatories and granted the motion to deem the Requests for Admission admitted.

Since the court's order, Plaintiff and her counsel have ignored and refused to obey the court's order of April 7, 2026. Plaintiff and her attorney have not paid the court-ordered sanctions of \$1,930, nor have they provided documents or answers to the interrogatories as ordered by the court.

Plaintiffs' failure to provide discovery and comply with the Court's discovery order constitutes a misuse of the discovery process. (See Code Civ. Proc. § 2023.010(d), (g).) When a party fails to comply with an order compelling attendance, testimony, and production, the Court may impose monetary, issue, evidentiary or terminating sanctions as provided in Section 2030.010, et seq. (Code Civ. Proc. § 2025.450(h).)

The Court nevertheless declines to impose terminating sanctions. Although the Court expects its orders to be followed, dismissal with prejudice would be too harsh under the circumstances presented at this point. Despite the Court previously imposing monetary sanctions, the Court concludes the drastic remedy of terminating sanctions is not warranted under the circumstances. Terminating sanctions are reserved for situations in which lesser sanctions, such as evidentiary or issue sanctions, have proven ineffective, or for cases in which no lesser sanction would adequately address the discovery misuse.

Although Plaintiffs' failure to comply fully with the Order is serious, the Court has not yet imposed issue or evidentiary sanctions, and the record does not show Plaintiffs were warned continued noncompliance could lead to dismissal. Had Defendant sought a lesser sanction than dismissal with prejudice, the Court would have been more open to granting the

motion. But since Defendant only sought one sanction – dismissal – the Court will not consider lesser sanctions. For these reasons, the Court does not find the record sufficient to justify dismissal of the action with prejudice; an incremental approach is more appropriate.

Accordingly, the Court DENIES Defendant's Motion.

V. CONCLUSION

Based on the foregoing, the Court DENIES Defendant's Motion for Terminating Sanctions.

IT IS SO ORDERED.

DATED: July 10, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.